BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

[ALTERNATIVE PROPOSED] ORDER SETTING LIMITED EVIDENTIARY PROCEEDINGS

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

Superior Court of California, Alameda County -- Case No. 26CV191136 Newanforbi v. California Highway Patrol et al. -- Hon. Jenna M. Whitman, Dept.25

The Court, having heard Petitioner's noticed motion and considered the parties' submissions, finds that the surviving First Cause of Action presents one or more factual disputes essential to evaluating the alleged qualifying unlawful personal restraint and the April 20, 2026 certification determination. The Court does not presently find that Petitioner was the victim of criminal false imprisonment or that the denial was an abuse of discretion.

Under Code of Civil Procedure sections 1090, 1091 and 1094 and the Court's

applicable trial-management authority, IT IS ORDERED:

1. A trial-setting / evidentiary management conference is set for [DATE/TIME] in Dept.25. No merits writ is granted or denied in this procedural order.

2. Subject to final issue narrowing at that conference, material questions include: a. The location and condition of the stationary vehicle and whether a factual prerequisite of Vehicle Code section 40300.5(a)--(e) authorized warrantless misdemeanor DUI arrest without officer-observed driving; b. The relevant observations and circumstances actually known to the arresting officers before ~01:11--01:12 arrest, separate from later warrant and lab evidence; c. Whether the walk-and-turn test was declined by Petitioner or not administered at an officer's direction owing to unsafe terrain; if inaccurate, whether the report item was material to the factual arrest basis; d. Whether intentional compulsory restraint, lacking lawful privilege, constituted qualifying Penal Code section 236 activity or another genuinely applicable offense; and e. Whether a specific legal or materially erroneous factual premise infected the April 20 decision and, only as required, whether Petitioner's helpfulness meets section 679.10(g)--(h).

3. Within [___] days the parties shall meet and confer regarding contested facts, exact proposed stipulations, expected testimony of Melano and Meza-Gonzalez and any authorized certification reviewer, identification of CHP Form 202/DS367/CAD/log materials, scope of properly requested nonprivileged certification decision records, and authentic replay of the native CHP recording with stable timestamps and full context. Any request to subpoena a witness or challenge asserted privilege requires the otherwise prescribed motion or subpoena procedure; nothing here resolves privilege.

4. No party may represent a litigant-prepared transcript, unaccepted lodging notice, test-result inference without scientific foundation, or historical research memorandum as

authenticated native evidence or a judicially determined fact.

5. The parties shall file a joint statement of disputed material facts and proposed procedure by [DATE], identifying any contested admissibility issues. No dismissed cause, independent damages theory or U-visa immigration adjudication is restored.

IT IS SO ORDERED.

Dated _____.

_____

JUDGE OF THE SUPERIOR COURT

Review-only; procedure and dates subject to controlling entered case-management order.